

Ritu Bala vs Anuj Kumar on 22 May, 2024

Bench: Tarlok Singh Chauhan, Sushil Kukreja

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

FA0(FC) No.5 of 2021.

Date of decision: 22.05.2024.

Ritu Bala

.....Appellant.

Versus

Anuj Kumar
Coram

.....Respondent.

The Hon'ble Mr. Justice Tarlok Singh Chauhan, Judge.

The Hon'ble Mr. Justice Sushil Kukreja, Judge.

Whether approved for reporting?1 No

For the Appellant

:

Mr. Tarun Sharma, Advocate, along
with appellant.

For the Respondent

:

Mr. Ajay Sharma, Senior Advocate
with Ms. Kavita Kajal, Advocate,

along with respondent.

Tarlok Singh Chauhan, Judge (Oral)

It is heartening to note that with the pro-active role played by Shri S.C. Sharma, Senior Advocate and a trained Mediator of this Court, the parties have amicably settled the matter in the following

terms:

"3. It is also agreed by both the parties that respondent Shri Anuj Kumar will pay a total sum of Rs.7,50,000/- (Seven Lacs Fifty Thousand) as a permanent alimony being a full and final settlement. The said amount will be paid by the respondent to the appellant Smt. Ritu Bala through Cheque or through Bank Draft on the next date of hearing, when the matter is listed before the Hon'ble Court.

Whether the reporters of the local papers may be allowed to see the Judgment?Yes

4. Respondent-Shri Anuj Kumar has further agreed that he will not alienate or create any charge qua the share of .

Master Prahav Bardi in the ancestral property. He has also agreed that the share of Master Prahav Bardi in the ancestral property will remain intact.

5. Both the parties have agreed that the appellant Smt. Ritu Bala shall withdraw her appeal. Both the parties have further stated that now there is no dispute between them in lieu of matrimonial ties in future. Both the parties have stated that they have been living separately for the last more than 12 years and have not resumed any matrimonial relations during the aforesaid period.

6. Appellant has further stated that since they are living separately for the last more than 12 years and marriage has no meaning anymore, therefore, she does not want to pursue her appeal i.e. FAO(FC) No. 5 of 2021 titled Ritu Bala vs. Anuj Kumar before the Hon'ble High Court of H.P., as such, the said appeal can be dismissed as withdrawn. She has further stated that the judgment of learned District Judge, Family Court, Kangra at Dharamshala, District Kangra, H.P. passed in Registration No.3 of 2016/RBT HMA No.523-D/III/2019/2016 titled Anuj Kumar vs. Ritu Bala decided on 24.10.2019 under Section 13(1) (i-a) (i-b) of Hindu Marriage Act, 1955, for the dissolution of marriage, may kindly be affirmed."

2. In view of the compromise arrived at between the parties, the respondent has agreed in the open Court that he will not alienate or create any charge qua the share of Master Prahav Bardi in the ancestral property. He has also undertaken and agreed that the share of Master Prahav Bardi in the ancestral property will remain intact. Both the parties have agreed that the appellant will withdraw her appeal in lieu of the compromise entered into between them.

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3. Now that the respondent has handed over a cheque bearing No.363331 dated 22.05.2024 amounting to Rs.7,50,000/- to the appellant, we deem it appropriate to dispose of this appeal as withdrawn, however, with a clear direction that the respondent shall be bound by the undertaking as recorded above with regard to non-

alienation or creating any charge qua the share of Master Prahav Bardi in the ancestral property and shall also ensure that his (Master Prahav Bardi) share in the ancestral property will remain intact.

Ordered accordingly.

4. We are informed at the Bar that Master Prahav Bardi is to remain in the custody of the appellant, however, that does not mean that the respondent shall have no visitation rights. We, therefore, clarify that the respondent shall be entitled to visit Master Prahav Bardi atleast twice in a month till the time Master Prahav Bardi does not attain the age of majority.

5. Pending application, if any, also stands disposed of.

(Tarlok Singh Chauhan) Judge (Sushil Kukreja) Judge May 22, 2024.

(krt)